

**Justification for Other than Full and Open Competition
U.S. Army Corps of Engineers, Europe District**

1. Contracting Activity:

U.S. Army Corps of Engineers, Europe District (CENAU), Konrad Adenauer Ring 39, 65187 Wiesbaden, Germany.

2. Description of Action:

Approval is requested for Other Than Full and Open Competition for sole source bridge contract under solicitation W912GB25R0022 for the Greece Recurring Maintenance and Minor Repair services (RMMR) requirement that was being performed on contract W912GB19C0007. The Government awarded a new requirement under solicitation W912GB24R0029; however, after receiving a protest and taking corrective action, that contract was subsequently cancelled. To prevent a longer gap in service while a new request for proposal (RFP) package is under development, this bridge contract is necessary to allow the Government to provide RMMR services on critical Department of Defense infrastructure.

3. Description of Supplies/Services:

This requirement is to provide all labor, supervision, materials, and equipment necessary to provide RMMR services to Defense Logistics Agency-Energy (DLA-E) capitalized fuel facilities at Navy installations throughout Greece for a period of seven (7) months. The Government anticipates that this bridging action will provide adequate time to make necessary adjustments to the source selection plan and resolicit and award a new competitive contract. The previous RMMR contract (W912GB19C0007) supporting this requirement was originally awarded on 18 March 2019 with services through 27 July 2024 in the amount of EUR 4,020,871.17.

On this bridge action, the contractor will be required to render the same services for work that is included on the previous contract, W912GB19C0007.

- Implementation of Contractor Plans
- Implementation of Recurring Maintenance and Minor Repair Services
- Scheduled Recurring Maintenance (Navy sites)
- Emergency Repair Service Orders (Navy sites)
- Unscheduled Minor Repair Service Orders (Navy Sites)
- Implementation of Records Management System

This RMMR contract vehicle provides vital capabilities to the U.S. Navy Fleet at U.S. Naval Support Activity Souda Bay, located on the island of Crete, Greece. It is an operational ashore base that enables U.S., allied, and partner nation forces to ensure security and stability in the European, African and Central Command areas of responsibility. It will provide qualified fuels contractors with certified technicians to maintain systems and infrastructure through preventive maintenance and inspections, adherence to Unified Facilities Criteria (UFC), host nation requirements, and the repair of DLA-E capitalized fuel facilities to support mission requirements. The RMMR contract vehicle provides scheduled maintenance and inspections, and routine and emergency response repairs.

As previously mentioned in the above paragraphs, the replacement RMMR acquisition (RFP W912GB24R0029) has experienced unforeseen delays despite significant planning and market research conducted leading up to releasing the solicitation. Since all the facilities covered under the RMMR contract vehicle support both training and operational requirements for ground vehicles, equipment, and aircraft, it is critical that the RMMR services are continuously provided to ensure there is no adverse mission impact. The adverse impacts will be discussed further under Reason for Authority Cited.

The period of performance for the previous RMMR contract ended on 27 July 2024. The period of performance for the proposed new contract is for seven months beginning on 28 February 2025 through 28 September 2025. [REDACTED]

4. Authority Cited:

10 United States Code 2304(c)(1) as implemented in Federal Acquisition Regulation (FAR) 6.302-1(a)(2), Only one responsible source and no other supplies or services will satisfy agency requirements. Specifically, sub paragraph (iii) services are deemed to be available only from the original source for the continued provision of highly specialized services and it is likely that award to any other source would result in (a) substantial duplication of cost to the Government that is not expected to be recovered through competition, and (b) unacceptable delays in fulfilling the agency's requirements.

5. Reason for Authority Cited:

a. Background

CENAU awarded the previous RMMR requirement as a standalone contract W912GB19C0007 to contractor [REDACTED]. The period of performance was initially awarded for one year with four option years but the provisions of FAR 52.217-8 were exercised to extend the contract to 27 July 2024. The Government awarded a follow-on contract under solicitation W912GB24R0029; however, the contract has been cancelled with the intent to resolicit the requirement.

Due to the background cited above and the vital support provided via the RMMR contract, CENAU is requesting a seven-month contract to be awarded to the incumbent contractor to reduce the gap in maintenance services. This additional time will allow CENAU personnel to re-evaluate the contract mechanisms to meet RMMR requirements.

b. Justification

The RMMR contract provides scheduled maintenance visits that adhere with requirements outlined in UFC 3-460-03 for quarterly, semi-annual, and annual maintenance activities. These maintenance and inspection functions are critical to keeping facilities in compliance with host nation and other applicable regulations while also providing the ability to address both routine and emergency unscheduled maintenance requests. This combination of unique capabilities makes the RMMR vehicle indispensable to DoD's mission in Greece and beyond.

The ordering period for W912GB19C0007 has expired and there is no other contract vehicle available to support these specialized fuel system maintenance services in Greece. Naval Facilities at NSA Souda Bay do not have the organic capability to support these systems, nor do they have sufficient technical resources on their staff to support fuel system maintenance contracts. As such and with no replacement contract vehicle in place, operational and training missions in Greece will be jeopardized due to the lack of fuel systems maintenance support if the gap in service continues. The fuel systems covered under the RMMR contract support refueling of tactical vehicles, equipment, and government vehicles at retail fuel points, and bulk fuel sites supporting operational airfields and ground maneuver units.

As fueling system failures have the potential to halt training exercises throughout the region and ground aircraft, it is of vital importance to have a contract vehicle in place capable of providing RMMR services, with no lapse in service. As the incumbent RMMR contractor, [REDACTED] was recently providing RMMR services in Greece, they are the only contractor with the ability to provide immediate maintenance support with no service gap. [REDACTED] already possesses base access for personnel and will be able to perform based off existing submittals. All subcontractor relationships are already in place making it a smooth transition. Despite the Government's best efforts to put a replacement vehicle in place, unforeseen challenges regarding contracting mechanisms were only discovered after the solicitation closed and a protest was received. With significant time needed to refine the RFP, evaluate proposals, and award a replacement contract in order to minimize the lapse in service, there is only one responsible source, [REDACTED] that is capable of providing services that will satisfy agency requirements.

c. Impact

The Government anticipates significant costs would be incurred if this bridge action is not awarded to the current RMMR contractor, [REDACTED]. The time and effort to mobilize a new, unfamiliar contractor for such a short bridge contract action would be extensive and costly. [REDACTED] currently has the resources and subcontractors identified and in place to cover the requirements to support this program. There are costs for a new contractor to familiarize

themselves with the nuances of the site. Each site has its own access procedures and requirements for both regularly scheduled and unscheduled maintenance. All trades (electrical, mechanical, pipe-fitting, and specialized, will all require contract terms negotiation, signings, base access request, etc.

Most of the costs associated with potentially replacing [REDACTED] are attributed to any efforts associated with familiarizing a potential replacement contractor with the site and costs associated with the many maintenance requirements that are immediate and projected. Administrative Plans will have to be written by Contractor and accepted by the Government. By attempting to streamline this process will lead to increased safety and operation risk and possibly failures.

Currently, the site is experiencing a day-for-day schedule impact which degrades mission readiness in two ways. The site is not receiving routine fuel maintenance such as meter calibrations, thermal relief device certifications and general preventive maintenance such as greasing pumps, etc. Also, some devices are now listed as "Out-of-Tolerance" and require recalibration and in some cases will now require replacement due to the repeated use during this Out-of-Tolerance period. At the time of this writing, some devices needing immediate recalibration or replacement are Filter Separators, Meters, Pressure Relief Valves, Gauges. It's anticipated that this will continue to grow until maintenance is performed. The site is also not receiving minor repair services. An example of items currently needing emergency repair is: *Diesel pump showing error codes and will not dispense. Troubleshooting by certified contractor is required.*

d. Alternatives

The only alternative that exists to providing RMMR services is to revise the current requirement and re-solicit these services using full and open competition procedures.

6. Efforts to Obtain Competition:

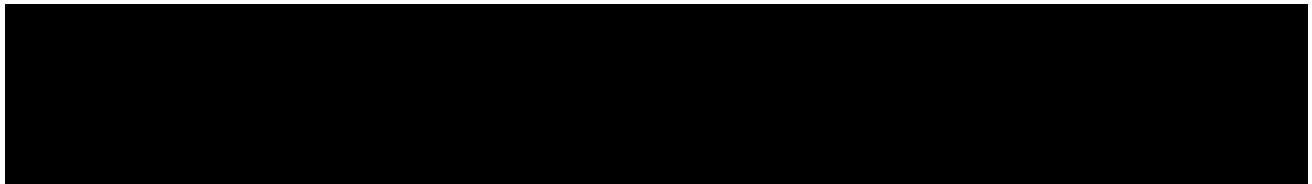
RMMR services must be in place as soon as possible to minimize a gap in service which is putting operations of critical infrastructure at significant risk. Sufficient time for a new contractor to mobilize and perform the requirement on an immediate basis is unrealistic. As a result, efforts to obtain competition for this bridge action will not be undertaken.

7. Market Research

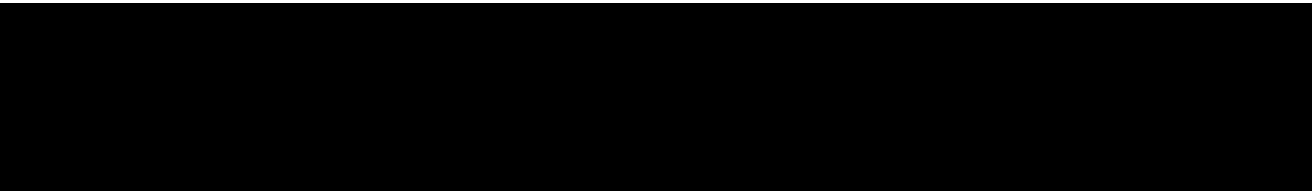
CENAU intends to award a new long-term contract utilizing full and open competitive procedures as soon as possible. This process is still on-going and would not be awarded in time for this requirement to effectively transition contractors nor would it be appropriate for the reasons discussed above.

CENAU is the primary agent that manages RMMR requirements for the major service components in Europe. There are currently no other viable sources or contractual vehicles that the Government can utilize to fulfill the Greece RMMR requirement.

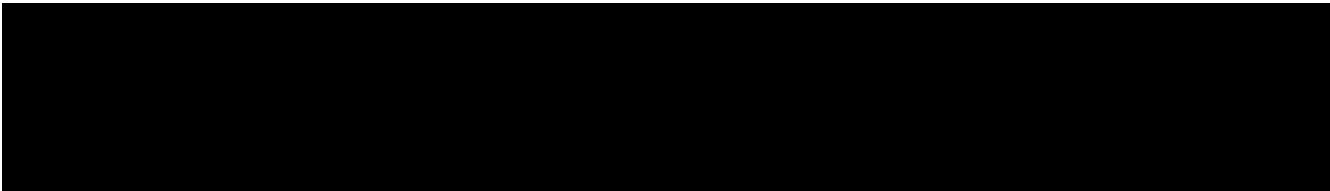
8. Technical Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.



9. Requirements Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

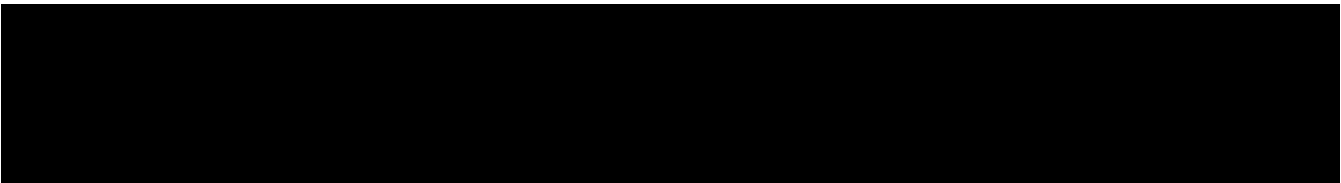


10. Legal Review and Concurrence: I hereby determine that the information herein is legally sufficient, and I concur with the sole source procurement.



11. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. This contract action is anticipated to exceed the threshold as stated in FAR 15.403-4(a)(1). Certified Cost or pricing data will be required and relied upon in determining the reasonableness of cost/price.

The overall acquisition will be negotiated and evaluated in accordance with FAR 15.404-1. The offeror's proposal will be evaluated through price analysis techniques as described in FAR 15.404-1. The Independent Government Estimate for this requirement was developed using a wide range of professional experience, historical data and similar industry pricing and will establish a negotiation position in order to achieve a fair and reasonable price.



12. **Contracting Officer Certification:** I certify that this justification is accurate and complete to the best of my knowledge and belief.

